

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 521

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO CRIMINAL HISTORY RECORDS AND CRIME INFORMATION; AMENDING SECTION 67-3008, IDAHO CODE, TO REVISE A PROVISION REGARDING THE RELEASE OF CRIMINAL HISTORY RECORD INFORMATION AND TO MAKE TECHNICAL CORRECTIONS; AMENDING CHAPTER 30, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-3008A, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING SUBMISSION BY A COVERED ENTITY FOR FINGERPRINT SCREENING; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 67-3008, Idaho Code, be, and the same is hereby amended to read as follows:

67-3008. RELEASE OF CRIMINAL HISTORY RECORD INFORMATION. (1) All units of state, city, and local governments, ~~and any agency of the state created by the legislature that requires, by statute, rule, or local or county ordinance, fingerprinting of applicants or licensees; and any persons associated with private, noncriminal justice entities that qualify under the national child protection act of 1993 and volunteers for children act that serve vulnerable populations such as children, the elderly, and individuals with disabilities~~ are authorized to submit fingerprints to the bureau for examination and for further submission, if necessary, to the federal bureau of investigation. The bureau shall be the state's sole source of fingerprint submissions to the federal bureau of investigation for criminal justice and applicant or licensing purposes to the federal bureau of investigation.

(2) The department shall provide copies of or communicate information from criminal history records to the following:

(a) Criminal justice agencies and the court;

(b) A person or public agency or private entity, upon written application on a form approved by the director and provided by the department, subject to the following restrictions:

(i) A request for criminal history records must be submitted in writing or as provided by rule. However, the department shall accept a request presented in person by the subject of the record;

(ii) The request must identify a specific person by name and date of birth. Fingerprints of the person named may be required to establish positive identification;

(iii) Responding to the request does not interfere with the secure and orderly conduct of the department and would not substantially prejudice or prevent the carrying out of the functions of the department;

(iv) A record of an arrest that does not contain a disposition after twelve (12) months from the date of arrest may only be disseminated by the department to criminal justice agencies, to the sub-

ject of the record, or to a person requesting the criminal history information with a signed release from the subject of the record; and

(v) Any release of criminal history data by the department shall prominently display the statement: "AN ARREST WITHOUT DISPOSITION IS NOT AN INDICATION OF GUILT."

(3) Judicial review of the department's denial of a request for records shall be in accordance with the provisions of section 74-115, Idaho Code.

(4) A request for a criminal history record by a criminal justice agency or a court shall take precedence over all other requests. The department shall adopt rules to set forth the manner by which criminal justice agencies and courts without direct access to the public safety and security information system established by section 19-5202, Idaho Code, may request Idaho criminal history record information.

(5) Unless otherwise provided by law, access authorized under this section to criminal history records does not create a duty upon a person, employer, private entity, or public agency to examine the criminal history record of an applicant, employee or volunteer.

(6) A person or private entity, or public agency, other than the department, shall not disseminate criminal history record information obtained from the department to a person or agency that is not a criminal justice agency or a court without a signed release of the subject of record or unless otherwise provided by law.

(7) Direct access to criminal history record information is regulated by chapter 52, title 19, Idaho Code, and the rules adopted pursuant to that chapter.

SECTION 2. That Chapter 30, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-3008A, Idaho Code, and to read as follows:

67-3008A. SUBMISSION BY A COVERED ENTITY FOR FINGERPRINT SCREENING. (1) Any private, noncriminal justice entities qualifying to participate under the national child protection act of 1993 and volunteers for children act, as amended, that serve vulnerable populations such as children, the elderly, and individuals with disabilities are authorized to submit fingerprints to the bureau for examination and for further submission, if necessary, to the federal bureau of investigation for a criminal history records check. The bureau shall be the state's sole source of fingerprint submissions to the federal bureau of investigation for applicant or licensing purposes.

(2) A qualified entity shall submit a request for fingerprint screening to the bureau for a covered individual, independent contractor, vendor employee, or volunteer of the qualified entity who has supervised or unsupervised access to children, the elderly, or individuals with disabilities for eligibility screening of any state criminal history records and for forwarding to the federal bureau of investigation for its report on the criminal history of that person.

(3) The bureau shall provide written notification to any person being screened regarding the right of the person to obtain a copy of his background screening report, including without limitation any records of criminal his-

1 tory contained in the report, to appeal the results of the background screen-
2 ing report, to challenge the accuracy and completeness of any information
3 contained therein, and to obtain a determination as to the validity of such a
4 challenge before the qualified entity makes a final determination as to the
5 fitness of the person to have responsibility for the safety and well-being of
6 vulnerable populations.

7 (4) A request submitted pursuant to subsection (2) of this section
8 shall be accompanied by the payment of a fee to the bureau as authorized by
9 section 67-3010, Idaho Code, plus the amount prescribed by the federal bu-
10 reau of investigation for its report on the criminal history of the person in
11 accordance with the provisions of 34 U.S.C. 40102(e).

12 (5) After a request is submitted pursuant to subsection (2) of this sec-
13 tion, the bureau shall provide directly to the qualified entity:

14 (a) Any records of criminal history of the person being screened that
15 are not otherwise confidential pursuant to applicable statute or law;
16 and

17 (b) Any records of criminal history of the person being screened that
18 were received from the federal bureau of investigation. Any records of
19 criminal history obtained shall be available for qualified entities to
20 use only for the purpose of screening covered individuals, independent
21 contractors, vendor employees, or volunteers of the qualified entity
22 who have supervised or unsupervised access to vulnerable populations.

23 (6) Determination as to the fitness of a person to have responsibility
24 for the safety and well-being of vulnerable populations shall be the sole re-
25 sponsibility of the qualified entity that submitted the request for screen-
26 ing.

27 (7) The bureau may audit any qualified entity that submits a request
28 for screening pursuant to subsection (2) of this section to ensure compli-
29 ance with all applicable state and federal laws. Each qualified entity shall
30 maintain all signed waivers allowing such requests for the purpose of an au-
31 dit for at least one (1) audit cycle or for as long as the screened individual
32 is employed by or volunteers for the qualified entity, whichever is greater.

33 (8) As used in this section:

34 (a) "Covered individual" means an individual who has, seeks to have, or
35 may have access to children, the elderly, or individuals with disabili-
36 ties served by a qualified entity and:

37 (i) Is employed by, volunteers with, or seeks to be employed by or
38 volunteer with a qualified entity;

39 (ii) Owns or operates, or seeks to own or operate, a qualified en-
40 tity; or

41 (iii) Is an independent contractor or vendor working or volunteer-
42 ing in the same capacity as an employee or volunteer of a qualified
43 entity.

44 (b) "Qualified entity" means a business or organization, whether pub-
45 lic, private, for-profit, not-for-profit, or volunteer, that meets the
46 qualifications to participate in criminal history records screening
47 pursuant to P.L. 103-209, the national child protection act of 1993, as
48 amended, and 28 CFR 105, subpart D, the child protection improvements
49 act.

1 SECTION 3. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.